

		Defendant to give notice. 2. Application for Writ of Possession Plaintiff's Application for Writ of Possession is OFF-CALENDAR. Due to the Court's granting of the Motion for Change of Venue, the Writ of Possession cannot be heard by this Court. It is taken off-calendar as moot and the parties can reschedule it once this case is transferred to San Diego. Defendant to give notice.
8	2021-01201431 <i>Pierce vs. Specialized Loan Servicing, LLC</i>	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Compel Answers to Special Interrogatories 3) Motion to Compel Answers to Special Interrogatories 4) Motion to Compel Answers to Special Interrogatories 5) Motion to Compel Further Responses to Form Interrogatories 6) Motion to Compel Further Responses to Special Interrogatories 7) Motion to Compel Further Responses to Special Interrogatories 8) Motion to Compel Production 9) Motion to Compel Production 10) Motion to Compel Response to Requests for Admissions 11) Motion to Compel Response to Requests for Admissions 12) Motion to Compel Response to Requests for Admissions 13) Motion to Deem Facts Admitted • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Further Responses to Interrogatories • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Responses to Interrogatories • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Responses to Request for Production • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Responses to Request for Production • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Further Responses to Interrogatories • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Further Responses to Interrogatories • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Further Responses to Request for Admissions and Deem Admitted • Defendant Newrez, LLC F/K/A New Penn Financial, LLC, D/B/A Shellpoint Mortgage Servicing's Motion to Compel Further Responses to Request for Admissions and Deem Admitted

		On its own motion, the Court continues the above motions to 10-26-23 at 10:00 a.m. in Dept C33. The Court requests that the parties appear at the 9-21-23 hearing prepare to address the following issues: • The identity of Plaintiffs' attorney, if any, going forward. • Whether Plaintiffs stipulate that service of the motions to compel before the Court was proper • If Plaintiffs do not intend to proceed with an attorney, whether Plaintiffs consent to service by email. Pursuant to Code of Civil Procedure section 1010.6(c)(3)(ii), an unrepresented party may be served electronically if they manifest "affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent." If Plaintiffs state that they are agreeable to electronic service, Plaintiffs are to file a notice of consent to electronic service. Court orders Clerk to give notice.
9	2021-01218115 <i>Raggins vs. Kia America, Inc.</i>	1) Motion to Compel Further Responses to Special Interrogatories 2) Motion to Compel Production <u>Plaintiff's Motion to Compel Further Responses to Special Interrogatories</u> Plaintiffs move to compel further responses to Special Interrogatories (SPROGs), Set One, Nos. 8-24. The Motion is GRANTED as to Nos. 8-21 and DENIED as to Nos. 22-24. First, the Court notes that Plaintiffs' counsel has filed separate statements of discovery in dispute as an attachment to their motions. In future, counsel shall file any separate statement as a separate document for the Court's review. Code of Civil Procedure section 2030.300 states in part, "(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general." SPROGs 8-13 seek information about recalls involving front axles of any Kia Forte model and any Kia front-wheel drive model. Plaintiff contends Kia vehicles have had issues with fractured front axles beginning in 2001. For purposes of this motion, Plaintiff has shown that discovery related to other Kia front-wheel drive vehicles is reasonably calculated to lead to admissible evidence regarding the